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BSIT 3B
IT 325

Activity: The “Terms Of Service” Audit

1. Data Sovereignty and Jurisdiction

GitHub's main office is located in the United States and operates under California law. As stated in the Terms of Service, any disputes and agreements are primarily regulated by the laws of California and those of the United States. This indicates that users consent to resolving legal matters related to GitHub according to U.S. law

<https://docs.github.com/en/site-policy/github-terms/github-terms-of-service#1-governing-law>

The geographic location of a data center is significant because local regulations dictate how governments or companies can access user data. For instance, U.S. regulations may permit government bodies to request specific information from tech firms. A user from a different country may not enjoy the same privacy safeguards they would have under their local laws. This can have implications for data privacy, security, and legal entitlements.

2. Intellectual Property (IP) Rights

According to GitHub’s User-Generated Content policy, you retain ownership of your content, but you give GitHub limited rights to host, display, and share it so the platform can function. You are still responsible for what you upload, and GitHub may remove content or suspend accounts when necessary.

<https://docs.github.com/en/site-policy/github-terms/github-terms-of-service#d-user-generated-content>

When you post content publicly on GitHub, it can be viewed by others, including your issues, comments, and contributions. By making your repositories public, you allow others to view and fork your work, meaning they can create their own copies within the platform.

You also grant other users a nonexclusive, worldwide license to use, display, perform, and reproduce your content through GitHub’s features. You may add extra rights by applying your own license. If you upload content you did not create, you are responsible for ensuring it is properly licensed for these uses.

<https://docs.github.com/en/site-policy/github-terms/github-terms-of-service#5-license-grant-to-other-users>

GitHub may retain and use your information as necessary to comply with legal obligations, resolve disputes, and enforce agreements, but unless required by law, your profile and repository content are generally deleted within 90 days after account cancellation or termination (with some data possibly remaining in encrypted backups and no longer recoverable), while content you contributed to other users’ repositories or that other users have forked will not be deleted, and upon request made within 90

days, you may receive a copy of your lawful account data after cancellation, termination, or downgrade.

<https://docs.github.com/en/site-policy/github-terms/github-terms-of-service#2-upon-cancellation>

3. Limitation of Liability

GitHub states that they are not responsible for any damages, losses, or problems that may happen while using their platform. This includes loss of profits, data, goodwill, or any indirect damages caused by system errors, service interruptions, unauthorized access, or actions of other users. They also explain that the service may be modified, suspended, or discontinued at any time without liability on their part.

Regarding system uptime and data loss, GitHub is refusing to guarantee that the platform will always work perfectly or that user data will always be safe. If problems occur, even due to technical failures or third-party actions, GitHub limits its responsibility for the consequences experienced by users.

If GitHub experiences a major data breach caused by their own negligence, the agreement states that their liability is still limited. In practice, this means users may not receive compensation for indirect losses such as lost files, profits, or business opportunities. The Terms of Service do not promise a specific amount of damages they will pay, showing that GitHub seeks to protect itself from large financial claims.

<https://docs.github.com/en/site-policy/github-terms/github-terms-of-service#p-limitation-of-liability>

4. Plain English Translation

Original Legal Text

“If you have a dispute with one or more Users, you agree to release GitHub from any and all claims, demands and damages (actual and consequential) of every kind and nature, known and unknown, arising out of or in any way connected with such disputes.”

<https://docs.github.com/en/site-policy/github-terms/github-terms-of-service?lang=en#q-release-and-indemnification>

Plain English Translation

If you have a problem with another GitHub user, GitHub says it is between you and that person. You cannot blame or sue GitHub for any damage, loss, or issue caused by the conflict. Simply put, GitHub is not responsible for fights, scams, or disagreements between users.